

24LBCV01207 24LBCV01207

County: los-angeles

Division: Civil Law and Motion

Department: S27

Hearing date: 2026-07-09

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Case Number: 24LBCV01207 Hearing Date: July 9, 2026 Dept: S27

1. Background

Facts

Plaintiff, Alfonso Turrubiarres

filed this action against Defendant, Forest Lawn Mortuary for damages arising out of injuries sustained while he was an employee of non-party, Chandler's A/C & Refrigeration.

Plaintiff filed the action on 6/11/24.

On 6/16/26, the Court granted Accredited Surety and Casualty Company, Inc.'s motion for leave to intervene. It paid workers' compensation benefits to Plaintiff in connection with the incident that forms the basis of this lawsuit, and is therefore entitled to intervene in the action as a matter of law.

The action is set for trial on 11/16/26.

2. Motion

for Leave to File a Cross-Complaint

On 5/21/26, Defendant filed this motion for leave to file a cross-complaint.

It seeks permission to file a cross-complaint against Plaintiff's employer, Chandler's Air Conditioning & Refrigeration for indemnification, contribution, and declaratory relief.

Notably, Defendant was named as an additional insured on Chandler's insurance policy purchased in connection with the subject project.

A cross-complaint against any of the parties who filed the initial complaint or cross-complaint against the cross-complainant must be filed before or at the same time as the answer to the initial complaint or cross-complaint, which answer must be filed within 30 days of service of the complaint or cross-complaint.

(CCP §§ 412.20(a)(3), 428.50(a), 432.10.) Any other cross-complaint may be filed at any time before the court has set a trial date.

(CCP §428.50(b).) If a party fails to file a cross-complaint within the time limits described above, he or she must obtain permission from the court to file the cross-complaint. (CCP §§ 426.50, 428.50(c).) Permission to file a permissive cross-complaint may be granted in the interest of justice at any time during the course of the action. (CCP § 428.50(c).)

Any opposition to the motion was due on or before 6/25/26. The Court has not received timely opposition to the motion and will not consider late-filed opposition. The Court notes that Defendant has tendered its claim to Chandler's, Chandler's recently participated in mediation, and Chandler's is aware of the claims Defendant intends to assert against it. The Court finds it is in the interest of justice to have Defendant's claims against Chandler's tried in the same action with Plaintiff's main complaint. The motion for leave to file the cross-complaint is therefore granted.

Defendant is ordered to file a separate copy of the cross-complaint within five days. Defendant is ordered to promptly serve the cross-complaint on Chandler's.

Defendant is ordered to give notice.